

MEMORANDUM TO THE FILE

Subj: DETERMINATION THAT ONLY ONE SOURCE IS REASONABLY AVAILABLE FOR A FAR PART 13 ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement (or portion of the requirement to be sole-sourced) is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

The requirement is for a service contract covering preventative maintenance and emergency services for the ActivRac 30P system. The agreement includes:

- *A minimum of one, up to two, preventative maintenance sessions annually.*
- *Unlimited emergency service calls during standard business hours.*
- *Priority service for covered equipment.*

Period of Performance: Base year plus three one-year options.

Estimated Cost: \$15,000 per year.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select all that apply):

A. X ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. X RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

Patterson Pope, Inc. is the only authorized service provider for the ActivRac 30P system. The proprietary nature of the equipment and the specialized training required to service it effectively prevent other vendors from performing the necessary maintenance without compromising system performance and warranty conditions. Additionally, previous contracts and discussions confirm that Patterson Pope is the

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Determination that Only One Source is Reasonably Available (Including Brand Name) – FAR Part 13 Acquisitions under the SAT
exclusive provider of factory-certified service and parts for this equipment.

Due to the proprietary nature of the ActivRac 30P system and the manufacturer's certification requirements, no other vendors were considered capable of providing the required services. A market research review confirmed that Patterson Pope remains the sole authorized provider.

Market research was conducted to determine if alternative vendors could provide the required services. It was confirmed that Patterson Pope, Inc. is the exclusive provider of preventative maintenance and emergency services for the ActivRac 30P system.

No other sources have expressed interest or capability to perform these services.

Given the proprietary nature of the equipment, no additional competition is feasible. Future efforts will include periodic market research to determine if additional vendors become authorized service providers.

2. ___ **EXCLUSIVE LICENSING AGREEMENTS.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. ___ **OTHER REASONS.**

B. ___ BRAND NAME

Item required must be a brand name, product, or feature of a product, particular to one manufacturer.

C. ___ URGENT AND COMPELLING. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

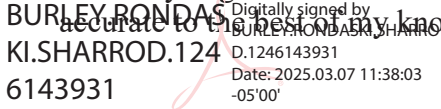
1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required:

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V. CERTIFICATIONS:

A. Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

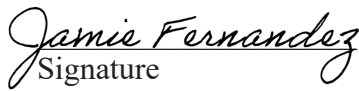
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Signature

Rondaski Burley 229-639-8103
Name (Printed) / Phone #

7 March 2025
Date

B. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

 Signature

GySgt Jamie Fernandez / 229 639 6747
Name (Printed) / Phone #

6/3/2025
Date

Distribution List for DL ONLY Limited Dissemination Control

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